

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 12
Honorable Nahal Iravani-Sani, Presiding**

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 09/04/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	17CV320200	Pedro Tostado Diaz et. al v. Luis Santiago et al.	MOTION TO ENFORCE SETTLEMENT Please Ctrl Click (or scroll down to) Line 1
LINE 2	24CV453642	Williams Herrera Arenas v. Ford Motor Company et al.	MOTION FOR SUMMARY ADJUDICATION Please Ctrl Click (or scroll down to) Line 2
LINE 3	25CV456971	Toeniskoetter Constuction, Inc. v. VitroLabs Inc	MOTION TO EXPUNGE MECHANICS LIEN Notice of entry of dismissal filed 8/28/26 – Off Calendar
LINE 4	25CV465349	Yiting Zhao et al v. Dr. Yueyue Guo, Lac et al.	PETITION TO COMPEL ARBITRATION Please Ctrl Click (or scroll down to) Line 4
LINE 5	25CV476583	Jason Adair v. Elisity, Inc.	MOTION TO COMPEL DISCOVERY Please Ctrl Click (or scroll down to) Lines 5-8
LINE 6			
LINE 7			
LINE 8			
LINE 9			
LINE 10			
LINE 11			
LINE 12			

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Calendar Line 1

Case Name: *Pedro Tostado Diaz, et al. v Luis Santiago et al.*

Case No. 17CV320200

BACKGROUND

This neighbor-easement dispute has been pending since December 8, 2017. Plaintiffs Pedro Tostado Diaz and Maria Raquel Tostado hold a recorded ingress -and -egress easement over a shared driveway on Defendants Luis and Maria Santiago's property. The parties resolved the litigation by a Release and Settlement Agreement dated June 26, 2019. A Stipulation Re Settlement was filed on July 30, 2019, and the Court retained jurisdiction under Code of Civil Procedure section 664.6.

The Agreement governs use of the driveway easement. As relevant here, Section 1 limits each family to one parked vehicle in a designated marked space alongside the fence. Section 3 permits vehicle washing and maintenance on the driveway for up to four hours, provided the vehicle remains parked alongside the fence as described in Section 1. Section 4 prohibits any party, family member, friend, or guest from placing or storing personal property on the driveway. Section 5 prohibits temporary or permanent barricades or obstructions on the driveway. Section 9 requires a good-faith meet and confer before enforcement. Section 11 provides tiered liquidated damages of \$1,000 for a first violation, \$2,000 for a second, \$3,000 for a third, and \$4,000 for each fourth and subsequent violation, plus reasonable attorneys' fees and costs to the prevailing party.

The Court has enforced the Agreement three times:

1. July 2, 2020: Plaintiffs were awarded \$1,000 in sanctions for a first violation.
2. January 19, 2024: Plaintiffs were awarded \$2,000 in liquidated damages, plus \$3,638.42 in attorneys' fees and costs, for a second violation.
3. October 4, 2024: Plaintiffs were awarded \$3,000 in liquidated damages, plus \$4,638.00 in attorneys' fees and costs, for a third violation. The Court found the Agreement "clear and unambiguous" and cautioned that "the parties should clearly understand what the Agreement provides going forward."

Plaintiffs now bring their fourth motion to enforce, seeking liquidated damages for 18 to 22 alleged post-October 4, 2024 breaches, plus attorneys' fees and costs.

REQUEST FOR JUDICIAL NOTICE

Plaintiffs request judicial notice of the Declaration of Gregory C. Simonian in Support of Motion to Enforce Settlement Agreement filed on August 2, 2024, a document in this Court's file. Court records are subject to judicial notice, and a court must take judicial notice of a matter specified in Evidence Code section 452 when the requesting party gives sufficient notice and provides sufficient information. Cal Evid Code § 452, Cal Evid Code § 453. A party seeking judicial notice of material in the same court file must identify the specific material and comply with California Rules of Court, rule 3.1306(c). Cal. Rules of Court, rule 3.1306.